

DRIVERS UNDER 21

If you are under 21 years old, there are additional laws for possessing and consuming alcohol.

Possessing alcohol:

- You may not carry any alcohol beverage inside a vehicle unless an individual who is 21 years old or older is with you. The container must be full, sealed, and unopened. If opened, the alcohol must be kept in the trunk or place where passengers do not sit.

EXCEPTION: If you are working for someone with an off-site liquor sales license, you may carry alcoholic beverages in closed containers.

- If you are caught with alcohol in your vehicle, law enforcement can impound your vehicle for up to 30 days. The court may fine you and suspend your driver's license for one year. If you do not already have a driver's license, the court may ask DMV to delay giving you your first driver's license for up to one year.

Consuming alcohol:

- If a law enforcement officer suspects you of consuming alcohol, they can require you to take a hand-held breath test, PAS, or another chemical test.
- If you are convicted of a DUI with a BAC of 0.01% or higher, DMV may revoke your driving privilege for one year. You must also complete a licensed DUI program.
- If your PAS shows a BAC of 0.05% or higher, the officer may require you to take a breath or blood test.
- If a later test shows you have a BAC of 0.05% or higher, you may be arrested for a DUI and your driving privilege may be suspended.